



File No.: EXP202408340

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure initiated by the Spanish Agency for the Protection of Data and based on the following

BACKGROUND

FIRST: As a result of a complaint filed with the Spanish Agency for the Protection of Data against OAC LOGÍSTICA, S.L. with NIF B05465984 (hereinafter, the complained party), and upon noticing indications of a possible breach of the regulations within the scope of the competencies of the Spanish Agency for the Protection of Data, actions were initiated under file number EXP202313848.

In accordance with the provisions of Article 65 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD hereinafter), the complaint was forwarded to the data controller or the Data Protection Officer designated, if applicable, requesting them to send this Agency the information and documentation indicated.

The transfer, which was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP) by means of electronic notification, was not collected by the data controller within the availability period, as evidenced by the acknowledgment of receipt in the file, understanding that the procedure was carried out in accordance with the provisions of Articles 43.2 and 41.5 of the LPACAP on October 20, 2023. Although the notification was validly carried out by electronic means, for informational purposes, a copy was sent by postal mail, which was returned to the sender by Correos on November 22, 2023, due to being unclaimed (not picked up at the office after a notice was left in the mailbox), according to the acknowledgment of receipt in the file.

On November 16, 2023, in accordance with Article 65 of the LOPDGDD, the complaint filed by the complainant was admitted for processing.

SECOND: The General Subdirectorate of Data Inspection proceeded to carry out preliminary investigative actions to clarify the facts in question, by virtue of the investigative powers granted to control authorities in Article 58.1 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and in accordance with the provisions established in Title VII, Chapter I, Section Two, of the aforementioned LOPDGDD.

In the framework of the investigative actions, a request for information was sent to the complained party regarding the complaint indicated in the first section, requesting that, within ten working days, they present to this Agency the information and documentation specified.

THIRD: The aforementioned request for information was notified in accordance with the rules established in the LPACAP on two occasions.

After an electronic notification that was not collected by the data controller within the availability period, the request was delivered to the complained party by postal means on April 19, 2024, as evidenced by the acknowledgments of receipt in the file.

FOURTH: Regarding the requested information, the complained party has not sent any response to this Spanish Agency for the Protection of Data.

FIFTH: On July 2, 2024, the Director of the Spanish Agency for the Protection of Data agreed to initiate sanctioning proceedings against the complained party for the alleged infringement of Article 58.1 of the GDPR, classified under Article 83.5 of the GDPR.

SIXTH: The agreement to initiate the present sanctioning procedure was notified to the complained party, in accordance with the rules established in the LPACAP, by means of an announcement published in the Official State Gazette dated August 8, 2024, after being returned to the sender by Correos due to being unclaimed (not picked up at the office), following two unsuccessful attempts to deliver the postal notification, as evidenced by the acknowledgments of receipt in the file.

In accordance with Article 42.1 of the LPACAP, the notification of the initiation agreement was also made available to the interested party by electronic means through the single enabled electronic address.

SEVENTH: The aforementioned initiation agreement was notified in accordance with the rules established in the LPACAP, and after the period granted for the submission of allegations had elapsed, it has been confirmed that no allegations have been received from the complained party.

Article 64.2.f) of the LPACAP -provision of which the complained party was informed in the initiation agreement- establishes that if no allegations are made within the stipulated period regarding the content of the initiation agreement, when it contains a precise statement regarding the responsibility attributed, it may be considered a proposal for resolution. In this case, the initiation agreement of the sanctioning file determined the facts in which the accusation was specified, the infringement of the GDPR attributed to the complained party, and the sanction that could be imposed. Therefore, considering that the complained party has not made allegations to the initiation agreement of the file and in accordance with the provisions of Article 64.2.f) of the LPACAP, the aforementioned initiation agreement is considered in this case as a proposal for resolution.

EIGHTH: According to the report obtained from the AXESOR tool, OAC LOGÍSTICA, S.L. is an entity established in 2021 with a subscribed capital of ***AMOUNT.1, for which no information is available regarding its income statement.

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In view of all the actions taken by the Spanish Agency for Data Protection in the present procedure, the following facts are considered proven,

PROVEN FACTS

FIRST: The information requests indicated in the second and third recitals were notified in accordance with the provisions of the LPACAP.

SECOND: The respondent has not responded to the information requests made by this Agency within the deadlines granted for that purpose in the framework of the investigation of file EXP202313848.

LEGAL GROUNDS

I

Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of the GDPR, and as established in Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

Breach of Obligation

In light of the facts presented, it is considered that the respondent has not provided the information requested by the Spanish Agency for Data Protection.

With the aforementioned conduct of the respondent, the investigative power granted to supervisory authorities by Article 58.1 of the GDPR, in this case, the AEPD, has been obstructed.

Therefore, the facts described in the "Proven Facts" section are deemed to constitute an infringement attributable to the respondent for violating Article 58.1 of the GDPR, which states that each supervisory authority shall have, among its investigative powers:

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"a) order the controller and the processor and, where applicable, the representative of the controller or

the processor, to provide any information necessary for the performance of their functions.”

III

Classification and Qualification of the Infringement

The facts presented are deemed to constitute an infringement attributable to the respondent.

This infringement is classified under Article 83.5.e) of the GDPR, which considers as such: “failure to provide access in violation of Article 58, paragraph 1.”

The same article establishes that this infringement may be sanctioned with a fine of up to twenty million euros (€20,000,000) or, in the case of an enterprise, an amount equivalent to four percent (4%) of the total annual global turnover of the previous financial year, opting for the higher amount.

For the purposes of the statute of limitations for infringements, the infringement attributed prescribes after three years, in accordance with Article 72.1 of the LOPDGDD, which qualifies the following conduct as very serious:

“ñ) Failure to provide access to the personal data, information, premises, equipment, and processing means required by the competent data protection authority for the exercise of its investigative powers.”

IV

Imposed Sanction

The fine imposed must be, in each individual case, effective, proportionate, and dissuasive, in accordance with the provisions of Article 83.1 of the GDPR. Consequently, the sanction to be imposed must be graduated according to the criteria established in Article 83.2 of the GDPR, and as provided in Article 76 of the LOPDGDD, regarding paragraph k) of the aforementioned Article 83.2 GDPR.

Furthermore, to ensure a consistent application of the GDPR, the Guidelines 04/2022 issued by the European Data Protection Board on the calculation of fines under the GDPR must be taken into account.

In light of the facts presented, it is considered appropriate to impose a sanction on the respondent for the violation of Article 58.1 of the GDPR classified under Article 83.5 e) of the GDPR. The sanction to be imposed is an administrative fine of €600.00.

Therefore, in accordance with the applicable legislation, the Director of the Spanish Agency for Data Protection RESOLVES:

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FIRST: TO IMPOSE on OAC LOGÍSTICA, S.L., with NIF B05465984, for an infringement of Article 58.1 of the GDPR, classified under Article 83.5 of the GDPR, a fine of 600.00 euros (SIX HUNDRED euros).

SECOND: TO ORDER OAC LOGÍSTICA, S.L., with NIF B05465984, that in accordance with the investigative power provided in Article 58.1.a) of the GDPR, it shall provide, within ten working days from the date this resolution becomes final and enforceable, the information requested in the requirements made in the framework of the proceedings numbered EXP202313848, to which reference has been made in the background of this resolution.

It is warned that failure to comply with the requirements of this body may be considered an administrative infringement in accordance with the provisions of the GDPR, classified as an infringement in its Article 83.6, which may lead to the initiation of further administrative sanctioning proceedings.

THIRD: NOTIFY this resolution to OAC LOGÍSTICA, S.L.

FOURTH: This resolution shall be enforceable once the period for filing the optional appeal for reconsideration (one month from the day following the notification of this resolution) has expired without the interested party having exercised this right.

The sanctioned party is warned that they must pay the imposed sanction once this resolution becomes enforceable, in accordance with the provisions of Article 98.1.b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter LPACAP), within the voluntary payment period established in Article 68 of the General Collection Regulation, approved by

Royal Decree 939/2005, of July 29, in relation to Article 62 of Law 58/2003, of December 17, by making the payment, indicating the NIF of the sanctioned party and the procedure number that appears in the heading of this document, to the restricted account No.

IBAN: ES00-0000-0000-0000-0000-0000 (BIC/SWIFT Code: CAIXESBBXXX), opened in the name of the Spanish Agency for Data Protection at the banking entity CAIXABANK, S.A. Otherwise, collection will proceed in the executive period.

Upon receipt of the notification and once enforceable, if the date of enforceability falls between the 1st and the 15th of each month, inclusive, the deadline for voluntary payment will be until the 20th of the following month or the next working day thereafter, and if it falls between the 16th and the last day of each month, inclusive, the payment deadline will be until the 5th of the second following month or the next working day thereafter.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file an appeal for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. Finally, it is noted that in accordance with the provisions of Article 90.3 a) of the LPACAP, the firm resolution in the administrative process may be provisionally suspended if the interested party expresses their intention to file a contentious-administrative appeal.

If this is the case, the interested party must formally communicate this fact by writing to the Spanish Agency for Data Protection, submitting it through the Electronic Registry of the Agency [<https://sedeagpd.gob.es/sede-electronica-web/>], or through any of the other registries provided for in Article 16.4 of Law 39/2015, of October 1. They must also provide the Agency with documentation proving the effective filing of the contentious-administrative appeal. If the Agency does not have knowledge of the filing of the contentious-administrative appeal within two months from the day following the notification of this resolution, it will consider the provisional suspension terminated.

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Mar España Martí

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